



جموں اور کشمیر

ممتحنہ تعلیمات

PRIVILEGED INSTRUCTIONS

JAMMU AND KASHMIR



Jammu & Kashmir جموں و کشمیر



Privileged Instructions

Fundamental Principle:

- The people of the historical Princely State of Jammu and Kashmir have a fundamental right to full autonomy and appropriate self-governance.

Desired End State(s):

- Immediate withdrawal of Indian and Pakistani troops from Jammu and Kashmir, allowing for a legitimately elected local government to fully govern the region.
- Kashmiri self-governance, through an agreement on true autonomy for the Kashmiri people.
- Achieve full autonomy of the old Princely State of Jammu and Kashmir by pressing for clear timelines and commitments from negotiating partners.
- Represent Kashmiris' interests on the international stage, making clear that India and Pakistan do not and cannot fully or adequately represent their concerns.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Chief Minister.

PRIMARY GUIDANCE: These negotiations represent an unprecedented opportunity to gain international recognition and support. Meet with all parties that express willingness to discuss the future of Jammu and Kashmir. Secure the support of extra-regional parties, especially the United States and the United Kingdom, to guarantee honest and fair treatment from India and Pakistan.

It is rumored that the US and UK delegations may raise the issue of the rapid growth and purpose of the nuclear weapons programs of both Pakistan and India and may seek constraints on both programs. If this subject is broached in any of the talks that we are party to, your delegation has the moral obligation to remind all parties of the human toll that any such conflagration that may befall the populations of both countries should such a calamity be allowed to take place, and the only morally acceptable option is to rid the region of these weapons.

Chapter Issues and Principal Negotiating Positions

Chapter I: Territory

Discussion:

The sub-regions within Jammu and Kashmir are comprised of multiple cultural and religious groups whose status remains undetermined because of conflicting territorial claims asserted by India, China, and Pakistan.

Our Position:

We seek full autonomy for all of Jammu and Kashmir as delineated by the historical boundaries of the princely state of Jammu and Kashmir and recognize the right of all Kashmiris to democratically decide their own fate and form of governance. We firmly believe that all Kashmiris, no matter their religion, ethnicity, or past loyalties, are best served as part of a single Kashmiri state.

Guidance:

There are sub-regions within our territorial claims whose autonomy will be more difficult to assert and secure, but this should not hamper progress in gaining significant concessions from India and Pakistan. The Kashmir Valley is our primary base of support and would most likely select independence in a plebiscite. We significant political presence within the periphery regions, but we are less certain that a majority would support complete autonomy. We should remain flexible with regards to these areas.

Within Azad Kashmir and Gilgit-Baltistan, we have established a measure of support and positions despite Pakistani repression, and we must seize the opportunity to increase that support base to legitimize our claims to represent all Kashmiris on either side of the LoC. Territory is closely tied to governance, and so any agreement on territory must be complemented with an agreement on autonomy, and seizing that, then self-determination.

Regarding Aksai Chin, this region remains contested between India and China. Attempts to push negotiations that include this area are likely to only entrench the existing positions of both countries. As this area is sparsely populated, we can afford to negotiate here to gain China's favor on other issues.

Red Line:

No agreement in which we cede leadership to our region.

Chapter II: Jammu and Kashmir Governance

Governance

Discussion:

India's human rights abuses and Pakistan's neglect of the Jammu and Kashmir territories have produced unprecedented support for the autonomy movement which we lead. India's continued interference in the politics and governance of Jammu and Kashmir and the revocation of Article 370 have made it clear that the only options for democracy in Jammu and Kashmir are through an internationally mediated autonomy agreement that also protects our right to self-determination. Pakistan's disinterest in protecting or serving Kashmiris has made it evident that Azad Kashmir and Gilgit-Baltistan must be given the opportunity to join an autonomous state of Jammu and Kashmir.

Our Position:

The goal of our people that we represent is complete autonomy from both India and Pakistan. Recognizing the time, it took to gain international legitimacy, it is important to view these talks as an opportunity to lay the groundwork for a unified, self-reliant Jammu and Kashmir. Our goals for these negotiations are to preserve the international recognition and grant those same rights and recognition to those Kashmiris that are still denied them.

Guidance:

In initial meetings on the governance of Jammu and Kashmir, emphasize the right of the Kashmiri people to democratically decide their own fate. We represent the desire for autonomy and self-determination of all the peoples of the historic Princely State. If India and Pakistan are willing to discuss a true autonomy agreement, express interest in pursuing this agreement without reducing the current powers of the Legislative Assembly or precluding the future desires of the Kashmiri people for representative governance.

Any negotiations on regional autonomy should focus on tangible steps: (1) a credible commitment from India and Pakistan that autonomy will be respected; (2) removal of Indian and Pakistani troops from all of Jammu and Kashmir; and (3) explicit allocation of powers between the Legislative Assembly and federal authorities. No concessions should be made to India without the restoration of Article 370 and rescission of Article 356 implementation in the region. Direct negotiation with India and Pakistan is permitted in time, but we should first focus attention on garnering support from other parties that have sway with India and Pakistan, especially the US and UK delegations. We can also employ examples of successful autonomous agreements such as the Jammu and Kashmir Water Resources Act. Concrete agreements on timelines and implementation should be pursued aggressively; vague promises have delayed progress in Jammu and Kashmir since 1947. Negotiations over governance should be tied to other issues to ensure their consideration by all parties.

Red Line:

No agreement that undermines the power, legitimacy, or autonomy of duly elected local governments.

Plebiscite

Discussion:

A plebiscite to decide the future of Jammu and Kashmir has been delayed by India for over 70 years. Based on the 1947 Security Council resolution, the plebiscite would have only two options: accession to India, or accession to Pakistan.

Our Position:

We demand the inclusion of autonomy on the ballot for any potential plebiscite. We support the original terms of troop withdrawal prior to the vote and insists that any acceptable plebiscite be run by neutral UN organizers, potentially out of UNMOGIP.

Guidance:

Neither India nor Pakistan is likely to support the inclusion of full autonomy on the ballot, and so we should quickly seek support from the US and UK delegations. We support the fastest possible timeline for the plebiscite, preferably to be held within one year. We are willing and capable of organizing a substantial boycott of any plebiscite solely focused on accession. To achieve sufficient security to carry out the plebiscite, India and Pakistan must withdraw a significant number of troops. Suggest the expansion of UNMOGIP's duties to include the provision of security during the plebiscite.

Red Line:

No plebiscite without full autonomy as an option.

Chapter III: Human Rights and Displaced Persons

Human Rights Violations

Discussion:

The long history of harsh Indian crackdowns in Jammu and Kashmir, we and Pakistan demand an investigation into human rights abuses by Indian officials and the military police. While the UN, the United States and Great Britain strongly support the need for a human rights investigation, India has responded by accusing Pakistan of similar transgressions. Russia and China are also opposed to an international human rights investigation in fear of setting a precedent for similar investigations.

Our Position:

We call for an official UN investigation of all military transgressions and human rights violations perpetrated by Indian officials in Jammu and Kashmir over the past decades.

Guidance:

The request for a UN investigation into Indian human rights abuses is an important issue for all Kashmiri peoples. During the negotiations, we will rely on the support of Pakistan, the United States, Great Britain, and the UN for an investigation to the long history of abuses by Indian officials.

Red Line:

Any investigation into human rights abuses must be administered by the UN or internationally recognized neutral parties or organizations.

IDPs and Refugees

Discussion:

The conflict in Jammu and Kashmir has led to the voluntary or forced movement of around 950,000 civilians, both in terms of internal displacement and refugee migration to parts of Northern India and Pakistan. Despite present efforts, Internally Displaced Persons (IDPs) and refugees continue to require acute humanitarian assistance, including water, shelter, physical protection and medical attention. However, the Indian Army, fearing insurgents or militants within the IDP populations, severely restricts access to and movement from the IDP camps in the Kashmir Valley.

Our Position:

We request international assistance for relocating IDPs and refugees from these camps back to their home areas. To help accommodate their safe return, we also seek cooperation from India and Pakistan to create safe openings along the LoC to allow for easier return of displaced people.

Guidance:

We should use these negotiations to publicize the IDP and refugee crisis, particularly the negligence in protecting refugee rights. We will emphasize the extent of internal displacement and human rights violations to justify the need for a UN human rights investigation and increased international aid. We will emphasize the IDP and refugee crisis to support demands for full autonomy, as India and Pakistan have been unable to adequately assist the refugees located in their own nations and the overall population of Jammu and Kashmir.

Red Line:

IDP and refugee repatriation must be led by us in cooperation with India and Pakistan and/or under UN mandate.